

MATERIAL TRANSFER AGREEMENT (OUTGOING)

This Material Transfer Agreement ("Agreement"), effective the later of the two dates executed by the parties below (the "Effective Date"), is by and between [REDACTED], a non-profit educational and research institution with a business address at [REDACTED] ("Investigator"), who is not a party of this agreement, and University of Auckland with a business address at 22 Princes Street, Auckland, New Zealand ("Recipient") ([REDACTED] and Recipient may individually be referred to herein as a "Party" and collectively as the "Parties").

NOW, THEREFORE, the Parties hereto agree as follows:

Provider is the owner of the Material as specified herein;

Recipient is conducting research, described herein as the Research Project;

Provider desires to supply, and Recipient desires to obtain, samples of the Material solely for use in the Research Project; and

NOW THEREFORE, to protect proprietary interests with respect to the Material and to ensure compliance with certain federal regulations, Provider agrees to provide Material to Recipient under the following terms and conditions:

Definitions:

"**Material**" shall mean the Original Material, Progeny, and Unmodified Derivatives.

"**Modifications**" shall mean substances created by Recipient that contain or incorporate the Material.

"**Original Material**" shall mean heart tissue (including adipose heart tissue) samples.

"**Progeny**" shall mean unmodified descendants from the Material, such as virus from virus, cell from cell, or organism from organism.

"**Provider Scientist**" shall mean [REDACTED] a professor employed by [REDACTED] University.

"**Recipient Scientist**" shall mean [REDACTED] a professor employed by the Recipient.

"**Research Purposes**" shall mean to study, perform tests, evaluate, copy, propagate, and otherwise use Material for the internal Research Project.

"**Research Project**" shall mean [REDACTED]

"**Results**" means shall mean the data, results and other information created through the course of the Research Project.

"**Unmodified Derivatives**" shall mean substances created by Recipient which constitute an unmodified functional subunit or an expression product of the Original Material including, but not limited to, subclones or unmodified cell lines, purified or fractionated subsets of the Original Material, proteins or pieces of proteins expressed by DNA or RNA supplied by Provider or

Provider Scientist, monoclonal antibodies secreted by a hybridoma cell line, or subsets of the Original Material such as novel plasmids or vectors.

Terms and Conditions:

1. **Material.** Upon request for the Materials by Recipient, the Materials shall be provided by Provider to Recipient, subject to availability of such Materials. The availability of such Materials shall be determined solely by Provider.

2. **Material Ownership.** Provider retains title to the Material and Recipient shall not obtain any ownership rights in the Material or to Progeny or Unmodified Derivatives. The Material is to be used by Recipient solely for Research Purposes defined above as the Research Project. The Material may not be used for commercial purposes. The Research Project shall be conducted entirely at Recipient's place of business and only under the direction of Recipient Scientist. Recipient agrees not to make or have made any Modifications without obtaining the prior, written approval of the Provider.

RECIPIENT IS ADVISED THAT PATENT CLAIMS MAY HAVE BEEN FILED CLAIMING THE COMPOSITION AND METHODS OF USE OF THE MATERIAL, THAT RIGHTS TO SUCH CLAIMS MAY HAVE BEEN GRANTED TO THIRD PARTIES, AND THAT ANY USE OF THE MATERIAL FOR ANY PURPOSE OTHER THAN RECIPIENT'S RESEARCH PROJECT REQUIRES PRIOR, EXPRESS, WRITTEN CONSENT FROM PROVIDER.

3. **Third Party Transfer.** Recipient agrees not to transfer the Material to anyone who does not work under the direct supervision of the Recipient Scientist at the Recipient's place of business.

4. **Confidential Information.** The term "Confidential Information" shall include all Materials disclosed by [REDACTED] to Recipient and any other technical and non-technical information, in whatever form embodied, which is disclosed by, or to which access is provided, by [REDACTED] or its affiliates, agents, employees, Medical Affiliates ([REDACTED] and its hospitals and clinics where [REDACTED] may conduct some of its research, [REDACTED]

[REDACTED] ("Representatives") to the Recipient or its employees, agents, representatives, and independent contractors ("Affiliates"). "Confidential Information" shall also include any documents or material created by or at the direction of the Recipient containing Confidential Information disclosed by [REDACTED] or its Representatives.

Confidential Information shall not include information which (a) is or becomes public knowledge through no breach of this Agreement by Recipient; (b) is lawfully disclosed to the Recipient by a third party without obligation of confidentiality; (c) Recipient can prove by competent written evidence was developed independently without use of or reference to [REDACTED] Confidential Information; or (d) is approved for release by written authorization from [REDACTED]

In the event that Recipient is required, pursuant to applicable law, regulation, court order, or other legal process, to provide [REDACTED] Confidential Information, the Recipient will immediately notify [REDACTED] of such request so that [REDACTED] may take steps to seek an appropriate protective order or otherwise resist such request. Recipient will disclose only the portion of the Confidential Information which Recipient is advised by its legal counsel is legally required by the request.

The Recipient's obligations regarding the Confidential Information received pursuant to this Agreement will survive for seven (7) years from the date of disclosure.

5. **No Additional Rights.** Except as expressly granted to Recipient in this Agreement, no rights are provided to Recipient under any patent, patent application, trade secret, or other proprietary right of Provider. In particular, and without limitation, Provider grants no license to Recipient to use the Material to modify or create new Material which contains or incorporates any fractionated subsets of the Material or for profit-making or commercial purposes, such as sale of the Material or use of the Material in manufacturing or provision of a service to a third party.

6. **No Commercial Use.** Recipient agrees not to use the Material or Modifications for commercial purposes without Provider's express written consent. Recipient recognizes that use of the Material or Modifications for commercial purposes will require a license from Provider and that Provider has no obligation to grant a license in its ownership interest in the Material incorporated in the Modification or to its pre-existing patent rights governing uses of the Material or Modifications.

7. **Notification of Results.** Recipient will inform Provider of any research or experimental results related to the Principal Investigator's use or evaluation of the Material, by providing Provider a manuscript or report describing the results of such research or experimentation within sixty (60) days after completion of Principal Investigator's experimentation or evaluation, as described in the Purpose. Provider may utilize the results for any internal research and educational purpose.

8. **Publication.** Recipient agrees to submit any publication or press release containing the Research Results, whether oral or written, to Provider for review at least thirty (30) days prior to submission of the publication or press release. At Provider's request, Recipient shall delay submission or press release for a period not to exceed an additional sixty (60) days to permit Provider to secure patent or other protection for subject matter referred to therein. Confidential Information shall be removed from such publication at Provider's request. Recipient Scientist agrees to provide appropriate acknowledgment regarding the source of the Material and Provider Scientist's contributions, as scientifically appropriate, in all publications concerning its use.

9. **Intellectual Property.** Recipient understands that, as between Recipient and Provider, any and all proprietary rights, including but not limited to intellectual property rights in and to the Material shall be and remain in Provider. If the Research Project involving the Material, Unmodified Derivatives, or Modifications results in an invention or substance that may be patentable or useful, Recipient agrees to promptly disclose the invention to Provider, in confidence, before a patent application is filed. Title to any intellectual property conceived, expressed, and/or reduced to practice as a result of performance of this Agreement will belong to the creator or author, which will be determined in accordance with United States patent and copyright law. For jointly-owned inventions or works, the parties agree to work in good faith regarding any protection and commercialization strategy prior to taking any such actions. Recipient further understands and agrees Provider will have a sixty (60) day option to license, with the right to sublicense, all discoveries or inventions created as a result of use of the Material pursuant to this Agreement, on the condition that parties negotiate in good faith and reach mutual agreement on terms and conditions for a license agreement. It is understood and agreed that the Provider may have inventions, discoveries, innovations, copyrights, trade secrets, or other intellectual property rights, whether patentable or not, prior to engaging in this Agreement, or developed independently of this Agreement, and that such inventions, discoveries, innovations, copyrights, trade secrets, or intellectual property rights remain the sole property of Provider.

10. **Disclaimer.** It is acknowledged and agreed by Recipient, that any Material delivered pursuant to this Agreement is provided "as is", understood to be experimental in nature, and may have hazardous properties. PROVIDER MAKES NO REPRESENTATIONS AND EXTENDS NO WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. THERE ARE NO EXPRESS OR IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, OR THAT THE USE OF THE MATERIAL WILL NOT INFRINGE ANY PATENT, COPYRIGHT, TRADEMARK, OR OTHER PROPRIETARY RIGHTS.

11. **Liability.** Provider will not be liable to Recipient for any loss, claim, or demand made by Recipient, or made against Recipient by any other party, due to or arising from the use of the Material by Recipient. To the extent permitted by law, Recipient agrees to indemnify, defend and hold harmless Provider, its employees, agents, and contractors for any loss, claim, or demand made by Recipient, or made against Recipient by any other party, due to or arising from the use, storage or handling of the Material by Recipient. The maximum aggregate liability of the Recipient to the Provider in relation to this Agreement is limited to an amount equal to the cost of resupplying the Materials. Neither party will be liable to the other party in relation to this Agreement for any loss of profit, revenue, savings, business or goodwill, or for any consequential, indirect, incidental or special damage or loss of any kind. Despite any other provision of this Agreement, the Recipient will not be liable (including under any indemnity) for any loss, damage, cost or expense arising in relation to any claim that the Materials infringe any intellectual property rights or as a result of any breach of law or breach of this Agreement (including any warranty) by the Provider or its personnel.

14. **Material Fee.** The Material is provided without a fee. However, Recipient agrees to pay all shipping and handling costs associated with the Material if requested by Provider.

15. **Termination.** This Agreement will terminate on the earliest of the following dates: (a) with thirty (30) days written notice of termination by either party to the other party, or (b) five (5) years from the Effective Date of this Agreement. Paragraphs 2, 3, 4, 5, 6, 7, 8, 9, 10 and 11 shall survive termination of this Agreement. Upon termination of this Agreement under 15 (a)-(b), Recipient will discontinue use of the Material and will, upon direction of Provider, return or destroy any remaining Material.

16. **Assignment.** This Agreement shall not be assigned or otherwise transferred by either Party in whole or in part without the express written consent of the other Party.

17. **Export Controls.** Recipient agrees not to provide [REDACTED] with any Material that may be subject to export control laws and regulations without first informing [REDACTED] in writing prior to any such disclosure and shall not forward or provide any export-controlled information to [REDACTED] without [REDACTED] express written permission. If the Material is subject to export control laws, the Export Control Classification Number (ECCN) will be provided by Recipient in writing. If the Parties determine that an export license is required for transfer of technology, then both Parties shall discuss how to address compliance with export regulations.

18. **Governing Law and Venue.** The validity, construction and performance of this Agreement and the legal relations between the Parties to this Agreement shall be governed by and construed in accordance with the laws of the State of Illinois without regard to conflict of laws principles. In the event of a dispute the Parties agree to submit to the non-exclusive jurisdiction of the state or federal courts sitting in the State of Illinois.

19. **Severability.** If any provision of this Agreement or the application of such provision is invalid under any applicable statute or rule of law, the remaining provisions of this Agreement shall remain in full force and effect.